

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLCL036917: WELLS FARGO BANK NA VS JAIME JONES

07/02/2026 in Department 20

Motion for Summary Judgment

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff Wells Fargo Bank, N.A.'s ("Plaintiff") Motion for Summary Judgment

Tentative: Plaintiff's Motion for Summary Judgment is GRANTED. The Court finds that there is no triable issue as to any material fact and that Plaintiff is entitled to judgment as a matter of law. The Court also grants the motion, in its discretion, based on Defendant Jaime Jones' ("Defendant") failure to comply with Code of Civil Procedure section 437c, subdivision (b)(3). Defendant has failed to establish good cause for a continuance of the hearing.

Plaintiff shall give notice.

Background

On January 3, 2025, Plaintiff filed this complaint against Defendant asserting causes of action for (1) breach of contract and (2) breach of implied contract. Plaintiff alleges that pursuant to the parties' agreement, it extended a line of credit and issued a credit card to Defendant and Defendant incurred charges, paid charges, ceased paying his charges, and now owes Plaintiff a balance of \$25,223.15. Defendant's default entered June 11, 2025, was set aside on December 10, 2025 and his answer was filed that same date.

On March 4, 2026, Plaintiff filed its motion for summary judgment accompanied by a separate statement of undisputed material facts, a declaration from a representative of Plaintiff and evidence

in the form of the Consumer Credit Card Customer Agreement & Disclosure Statement and monthly statements for Defendant's use of the credit card from April 3, 2020 through January 30, 2024.

Legal Standards on Summary Judgment

The legal standards on summary judgment are well established and they are not repeated here.

Any opposition to a motion for summary judgment "shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The opposition separate statement shall also "set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence." (Code Civ. Proc., § 437c, subd. (b)(3); Cal. Rules of Court, rule 3.1350.)

If the moving parties satisfy their burden of persuasion that there is no triable issue of material fact and that they are entitled to judgment as a matter of law as well as their burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact and the opposing party fails to submit the required separate statement, a trial court may conclude that the opposing party has not satisfied his "burden of production" showing a triable issue of fact and may find that this failure constitutes sufficient ground for granting the motion. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416; Code Civ. Proc., § 437c, subd. (b)(3).)

Material Facts

For the limited purpose of ruling on this motion, the Court makes the following findings: Plaintiff's Undisputed Material Facts ("UMF") Nos. 1 through 14 (Breach of Contract) and 15 through 28 (Breach of Implied Contract) are undisputed and established.

Ruling on the Motion

A. Breach of Contract

To recover damages for breach of contract plaintiff must prove: (1) the existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, (4) plaintiff's damage, and (5) that defendant's breach was a substantial factor in causing plaintiff's damage (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388.) A contract may be implied (Civ. Code, § 1621.) Like an express contract, an implied-in-fact contract requires an ascertained agreement of the parties but is based on the conduct of the parties. (*Unilab Corp. v. Angeles IPA* (2016) 244 Cal.App.4th 622, 636.)

It is undisputed that Defendant applied for and was issued a line of credit and a Wells Fargo credit card ("Credit Card") which, along with the Consumer Credit Card Customer Agreement & Disclosure Statement, was sent to Defendant. (UMF ¶¶ 1, 15.) Plaintiff and Defendant agreed that Plaintiff would extend credit to Defendant in exchange for Defendant repaying the principal, plus

interest and applicable fees. (UMF ¶¶ 1-5, 15-19.) Defendant accepted the Agreement by making charges, payments and incurring a balance on the Credit Card. (UMF ¶¶ 4, 6, 18, 20.) Plaintiff kept an account of all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period and sent Defendant itemized monthly statements of all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period. (UMF ¶¶ 7-8, 21-22.) Defendant made payments on the account but made no payments after January 30, 2024, and is default with a balance owed to Plaintiff of \$25,223.15. (UMF ¶¶ 11-14, 25-28.) Plaintiff performed all of its obligations under the agreement. (UMF ¶¶ 1-8, 15-22.) Defendant breached the agreement by failing to pay the charges as agreed, leaving an unpaid balance of \$25,223.15. (UMF ¶¶ 1-14, 15-27.) As a result of the unpaid balance, Plaintiff has been damaged in the amount of \$25,223.15. (UMF ¶¶ 14, 28.)

Plaintiff has carried its burden of persuasion and production that there is no triable issue of material fact as to either cause of action and that it is entitled to judgment as a matter of law. Thus, the burden of production is shifted to Defendant to show the existence of a triable issue of material fact by presenting conflicting evidence to defeat summary judgment. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844.) Defendant has not submitted any evidence in opposition to the motion for summary judgment and thus has failed to carry her burden of production of showing a triable issue of fact.

Further, when the moving party carries their burden on a motion for summary judgment and the opposing party fails to submit the required separate statement, a trial court may conclude that the opposing party has not satisfied his “burden of production” showing a triable issue of fact and may constitute sufficient ground for granting the motion. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416; see, also, Code Civ. Proc., § 437c, subd. (b)(3).) Defendant did not submit the required separate statement and on this basis, the Court independently concludes that Defendant has failed to satisfy her burden.

Accordingly, the Court GRANTS Plaintiff’s Motion for Summary Judgment and enters its ORDER that the Motion for Summary Judgment is GRANTED against Defendant. Judgment shall be entered in favor of Plaintiff. Plaintiff is awarded its costs of suit pursuant to a memorandum of costs timely filed.

Request for Continuance

Defendant seeks a continuance to allow her to conduct discovery. Defendant has not established good cause for a continuance.

In seeking a continuance, an opposing party’s declaration must show facts establishing a likelihood that controverting evidence may exist, why the information sought is essential to opposing the motion, and the specific reasons why such evidence cannot be presented at this time. (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 397; *Grandino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420; (Code Civ. Proc., § 437c, subd. (h).) Defendant’s declaration fails on both counts.

Defendant observes that Exhibit 2 to the declaration of Plaintiff's custodian of records Betsy Gibbons contains statements with two different account numbers (Acct No. 6941 and No. 2416) whereas the Complaint and motion for summary judgment reference only account number 2416. Defendant contends that discovery is necessary to determine whether the two accounts are the same and whether the balance claimed by Plaintiff includes transactions from more than one account. The statements attached as Exhibit 2 to the declaration of Ms. Gibbons clearly show that account No. 6941 was the initial account number and that in March 2022, the outstanding balance of account No. 6941 was transferred to account No. 2416. The statements reflect that all charges relate to the same cardholder, Defendant.

Defendant claims that discovery is necessary to determine how the balance was calculated. The statements attached as Exhibit 2, show, month by month, all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period.

Defendant asserts that she has not had the opportunity to conduct discovery regarding the factual basis for the statements set forth in the Declaration of Betsy Gibbons and whether Plaintiff possesses records to support its claim that Defendant entered into an agreement with Defendant. She has not explained what specific facts would show the existence of controverting evidence. The Court finds that the proposed discovery would not yield facts essential to the opposition.

Defendant has failed to set forth specific reasons why such evidence cannot be presented at this time.